

Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

Plaintiff's declaration filed July 21, 2026 contains responses to the outstanding discovery. While the responses were untimely and may be insufficient (the Court is making no finding in that regard), they show that Plaintiff is attempting to comply with his discovery obligations. Under the circumstances, the imposition of terminating sanctions would be unjust. There is insufficient evidence that the discovery violations were willful or that less severe sanctions would not produce compliance with the discovery rules. *Id.* While less severe sanctions such as issue or evidentiary sanctions would appear appropriate, none were requested. The Court cannot issue an order awarding monetary, issue or evidentiary sanctions since Plaintiff has not been provided notice of that request in the underlying notice of motion and memorandum of points and authorities.

The motion is **DENIED** without prejudice to Defendant filing a new motion for monetary, issue or evidentiary sanctions, if there are additional discovery violations including and not limited to failing to comply with the Court's order compelling Plaintiff's deposition discussed below. A proposed order was lodged with the Court and will be modified to reflect the denial.

Tentative Ruling on Motion for Order Compelling Plaintiff's Deposition: Defendant Joshua Littlepage moves for an order to compel Plaintiff to attend a deposition pursuant to CCP § 2025.420. The motion is unopposed.

If a party served with a deposition notice fails to appear for their deposition without serving a valid objection, the party giving notice may move for an order compelling the deposition. CCP § 2025.450. Defendant's evidence establishes that Plaintiff was properly served with a deposition notice, failed to object to the deposition notice and failed to appear for the deposition.

Defendant's Motion to for Order Compelling Plaintiff's Deposition is **GRANTED**. Plaintiff shall appear for his deposition within 30 days of service of the notice of entry of order. A proposed order has been lodged and will be modified.

JEFFERSON CAPITAL SYSTEMS, LLC VS. PENDRAK
CASE NUMBER: 25CV-0208892

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 30, 2026, to Plaintiff and Counsel for failure to timely seek default pursuant to CRC 3.110(G). No response to the OSC has been filed. No request for entry of default has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. An appearance is necessary on today's calendar. Failure to appear will result in the issuance of an order to show cause re dismissal.

JUNEMAN VS. FCA US LLC, ET AL.
CASE NUMBER: 25CV-0207145

Tentative Ruling on Motion for Sanctions: Defendant FCA US, LLC moves for sanctions under CCP 871.26(j) based on Plaintiff's failure to comply with the disclosure requirements set forth in CCP 871.26(b). The Motion is properly noticed and is unopposed.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

Defendant has established that Plaintiff failed to timely serve the mandatory initial disclosures within 60 days of the filing of Defendant's responsive pleading, as required by CCP 871.26(b) and failed to provide complete information or the required documents. Defendants filed their responsive pleading on May 22, 2025. Plaintiff's initial disclosures were due on July 21, 2025. Plaintiff served initial disclosures, along with a single document, on August 6, 2025. Plaintiff has not served any additional documents or disclosures. (Declaration of Lopez ¶¶ 2-8.)

Plaintiff has not established good cause for the failure to comply with CCP 871.26(b). Sanctions of \$1,500 are therefore mandatory pursuant to CCP 871.26(j)(1). The Motion is **GRANTED**. Sanctions of \$1,500 are payable within 15 business days of notice of entry of order.

KAMILLE VS. MAYERS MEMORIAL HOSPITAL DISTRICT, ET AL.

CASE NUMBER: 25CV-0207640

Tentative Ruling on Motion for Summary Judgment/Adjudication: Defendant Mayers Memorial Healthcare District moves for summary judgment, or in the alternative summary adjudication, as to each cause of action alleged in the Complaint, pursuant to CCP § 437c. Plaintiff opposes the Motion.

This is a disability discrimination employment action. Plaintiff's Complaint generally alleges as follows. Plaintiff has autism spectrum disorder. He worked as a Systems Administrator for Mayers in Fall River Mills. He complained about exposure to strong toxic fumes which would seep into his office, which lacked windows and adequate ventilation. The fumes made Plaintiff dizzy and nauseous, causing sensory overload that interfered with this ability to perform his job. Plaintiff requested reasonable accommodation for his disability and was retaliated against and constructively terminated.

The Complaint alleges 12 causes of action. Numbers 10 and 12 were dismissed by Plaintiff. Defendant's Motion suggests the causes of action can be categorized into three theories: 1) numbers 1-5 are disability related claims based on Plaintiff's autism in violation of FEHA; 2) numbers 6-9 allege forms of retaliation for reporting the adhesive odors; and 3) number 11 is for Mayers' vicarious liability for intentional infliction of emotional distress by Plaintiff's supervisor, the individually named Defendant Jeff Miles. Miles does not join in this Motion.

Objections to Evidence: Defendant's objections to evidence numbers 1-4 are overruled.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).